



REPUBLIC OF THE PHILIPPINES
TARIFF COMMISSION

BRIEFER:
SECTION 1609
OF REPUBLIC
ACT NO. 10863



BRIEFER: SECTION 1609

"Promotion of Foreign Trade" under Republic Act No. 10863 (Customs Modernization and Tariff Act)

Purpose of Section 1609

Provides the legal basis for the President, upon the recommendation of the DEPDev, to enter into trade agreements with foreign governments or instrumentalities and to promote foreign trade by modifying import duties and other import restrictions

Procedures on Filing a Petition

1 Submit Requirements

Submit a petition letter and an accomplished TC Form:

- ▶ **TC Form 3:** Request for Tariff Modification
- ▶ **TC Form 4:** Request for Withdrawal/ Suspension of Tariff Concession

2 Investigation & Hearings

The TC conducts investigations which includes the conduct of public hearings to allow interested parties to present their views

3 Recommendation

The TC submits its Report of Findings and Recommendations to the Secretaries of the DEPDev and the DTI (Co-Chairpersons of the ED Council – TRMC)

Filing Fees

TC's schedule of fees and charges is prescribed in **Office Memorandum No. 18-010**.

Filing Fee	PHP 5,000.00 / tariff heading
Legal Research Fund	PHP 50.00 / tariff heading
Publication Cost	Share in publication cost is based on the number of products included in the petition

Timetable

TERMINATION OF THE
PUBLIC HEARING /
CONSULTATION

30 DAYS

Submission of Report of Findings and Recommendations to the DEPDev and the DTI

Resources

TC Website

www.tariffcommission.gov.ph

TC Citizen's Charter

Detailed checklist and step-by-step procedures available on the TC website

Commission Order No. 02-01

Rules and regulations governing the conduct of TC's formal investigation on the withdrawal and/or suspension of tariff concessions

1. What is Section 1609 of Republic Act No. 10863?

Section 1609 (*Promotion of Foreign Trade*) of Republic Act (RA) No. 10863, or the Customs Modernization and Tariff Act (CMTA), provides the legal basis by which the President, upon recommendation of the Department of Economy, Planning, and Development (DEPDev), previously the National Economic and Development Authority (NEDA), may enter into trade agreements with foreign governments or instrumentalities and modify import duties and other import restrictions to promote foreign trade with other countries as part of these trade agreements.

2. Who can file and what are the filing procedures for petitions for tariff modification and withdrawal/suspension of concessions under international trading arrangements under Section 1609?

Any interested party may file a petition under Section 1609 of the CMTA with the Tariff Commission (TC) by submitting a petition letter and an accomplished TC Form 3 (*Request for Tariff Modification*) or TC Form 4 (*Request for Withdrawal/Suspension of Tariff Concession*). The said Forms are available in the TC office or can be downloaded from the TC website www.tariffcommission.gov.ph.

The TC conducts investigations on the petitions it receives during which public hearings/consultations are held to afford interested parties reasonable opportunity to present their views. Upon the conclusion of its investigation, the TC submits its findings and recommendation/s to the Secretaries of the DEPDev and the Department of Trade and Industry (DTI), as Co-Chairpersons of the Economy and Development (ED) Council - Tariff and Related Matters Committee (TRMC).

3. Are there any fees to be paid by petitioners?

The TC's schedule of fees and charges is prescribed in Office Memorandum No. 18-010. Petitions found to be meritorious under Section 1609 are subject to a filing fee of Five Thousand Pesos (PHP 5,000.00) and a Legal Research Fund Fee of Fifty Pesos (PHP 50.00) per tariff heading, per petitioner.

Petitioners also share in the publication cost of the TC's *Notice of Public Hearing/Consultation* which is published in two (2) newspapers of general circulation. A petitioner's share of the publication cost is based on the number of products he/she is petitioning for withdrawal/suspension of tariff concession or for tariff modification which is/are the subject of the public hearing/consultation.

4. What is the timetable of a Section 1609 investigation?

The TC completes its investigation and submits its Report of Findings and Recommendations to the DEPDev and the DTI within thirty (30) days after the termination of the public hearing/consultation.

5. How does one file a petition for modification, withdrawal, or suspension of tariff concession under Section 1609?

Commission Order No. 02-01 provides the rules and regulations governing the conduct of TC's formal investigation on the withdrawal and/or suspension of tariff concessions.

The checklist of requirements and the step-by-step procedure in filing a request for modification, withdrawal or suspension of tariff concession under Section 1609 of the CMTA can be found in the TC Citizen's Charter uploaded on the TC website.